

CRIMINAL LAW

Wednesday, Sept. 10
(Lecture 5)

*Good morning! This
slide will help you
prepare for today's
class.*

- Our first topic is the presumption of innocence. Please be prepared to discuss *Oakes, Lifchus and Starr.*
- Next, I will take your questions about the video and associated handout on burdens, standards, and presumptions.
- Finally, we will turn to “Sources of Criminal Law.” Please be prepared to discuss the associated readings.

CRIMINAL LAW

**Tuesday, September 15
(Lecture 5)**

R v R.B.-C., 2026 SCC 30

[35] Sentencing may also take longer where the court is required to address the systemic and background factors affecting Indigenous and other racialized offenders. Section 718.2(e) of the *Criminal Code* requires sentencing judges to pay particular attention to the circumstances of Indigenous offenders, which requires a “different method of analysis” that considers systemic and background factors, often communicated in *Gladue* reports (*R. v. Gladue*, [1999] 1 S.C.R. 688, at para. 93; *R. v. Ipeelee*, 2012 SCC 13, [2012] 1 S.C.R. 433, at para. 59). Impact of Race and Culture Assessments may also be required to appreciate the systemic and background factors affecting other members of racialized communities. Prepared by individuals “with specialized knowledge, education and experience”, these assessments provide “‘indispensable’ content” in determining a fit sentence (*R. v. Anderson*, 2021 NSCA 62, 74 C.R. (7th) 333, at paras. 109 and 119, citing *Ipeelee*, at para. 60; see also *R. v. Morris*, 2021 ONCA 680, 159 O.R. (3d) 641, at para. 138), and may take months to prepare (I.F., Attorney General of Nova Scotia, at para. 12).

Paciocco, “Understanding the Accusatorial [i.e., Adversarial] System”

Key principles:

- Specific allegation
- **Presumption of innocence**
- Principle of full answer and defence
- No conscription (included the right to silence)
- Prosecutorial independence
- Judicial independence and impartiality
- Open court principle

Objectives for Week 2 (continued)

15. Explain the presumption of innocence, including its common law and constitutional statuses, and its relationship to the proof beyond a reasonable doubt standard.
16. Describe how the proof beyond a reasonable doubt standard should be explained to juries.
17. Apply the *W.(D.)* framework and explain its purpose.

Woolmington v. D.P.P.

[1935] A.C. 463 (H.L.)

“Throughout the web of the English Criminal Law one golden thread is always to be seen, that it is the duty of the prosecution to prove the prisoners’ guilt [...]

If, at the end of and on the whole of the case, there is a reasonable doubt, created by the evidence given by either the prosecution or the prisoner [...] the prosecution has not made out the case and the prisoner is entitled to an acquittal.

No matter what the charge or where the trial, the principle that the prosecution must prove the guilt of the prisoner is part of the common law of England and no attempt to whittle it down can be entertained.”

Sources of Law “Foodchain”

CONSTITUTION

(including *Charter*)



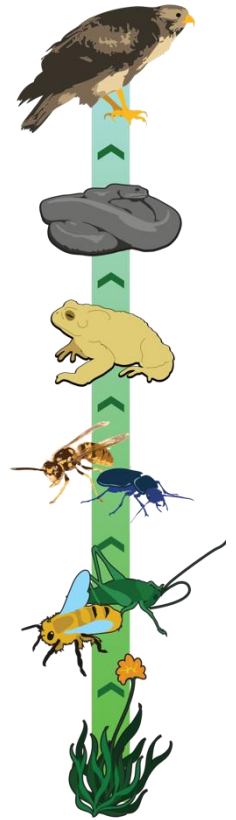
STATUTE

(*Criminal Code, Controlled Drugs and Substances Act, etc.*)



COMMON LAW

(“precedent”)



The *Charter*

11. Any person charged with an offence has the right [...]
(d) to be presumed innocent until proven guilty according to law in a fair and public hearing by an independent and impartial tribunal

R. v. Oakes

“Following this finding [that Mr. Oakes was in possession of a narcotic], Mr. Oakes brought a motion to challenge the constitutional validity of s. 8 of the *Narcotic Control Act***, which he maintained imposes a burden on an accused to prove that he or she was not in possession for the purpose of trafficking. He argued that s. 8 violates the presumption of innocence contained in s. 11(d) of the *Charter*.”

*** Accused found in possession → Accused must prove on BOP it was not for purposes of trafficking.*

R. v. Oakes

- **Accused must be proven guilty beyond a reasonable doubt**
- **Prosecution bears the burden of proof**
- **Criminal prosecutions “must be carried out in accordance with lawful procedures and fairness”**

R. v. Lifchus

“When I use the words ‘proof beyond reasonable doubt’ I use those words in the ordinary, natural every day sense. There isn’t one of you who hasn’t said, gosh I’ve got a doubt about such and so. Perfectly every day word. There isn’t one of you who doesn’t have a notion of reasonable. That, too, is a perfectly ordinary concept.”

(Trial judge’s instructions, *Lifchus*)

R. v. Lifchus

- Reasonable doubt is not:
 - “An **imaginary or frivolous** doubt”; or
 - A doubt “based upon **sympathy or prejudice**”.
- Reasonable doubt is:
 - “Based on **reason and common sense**”; and
 - “Logically **derived from the evidence** or absence of evidence” (though may be hard to articulate)
- Crown need not prove guilt “to an absolute certainty”; but
- Crown must do more than prove that the accused is “probably guilty or likely guilty”

R. v. Starr

- Reasonable doubt “falls **much closer to absolute certainty than to proof on a balance of probabilities.**”
- “[S]omething **less than absolute certainty** is required, and [...] something **more than probable guilt** is required, in order for the jury to convict.”

Objectives for Week 2 (continued)

15. Explain the presumption of innocence, including its common law and constitutional statuses, and its relationship to the proof beyond a reasonable doubt standard.
16. Describe how the proof beyond a reasonable doubt standard should be explained to juries.
17. Apply the *W.(D.)* framework and explain its purpose.

The *W.(D.)* Formula

“.... *W.(D.)*. simply unpacks for the benefit of the lay jury what reasonable doubt means in the context of evaluating conflicting testimonial accounts. It alerts the jury to the ‘credibility contest’ error.”

(*R. v. S.(J.H.)*, S&C p. 93)

The (Revised) *W.(D.)* Formula

“First, if you **believe the [exculpatory] evidence** of the accused, obviously you must acquit.

Second, if you do not believe [all of] the testimony of the accused but **you are left in reasonable doubt by [any part of the accused’s testimony]**, you must acquit.

Third, even if you are not left in [reasonable] doubt by [any part of the accused’s testimony], you must [consider all] of the evidence which you do accept, **[and ask yourself whether that evidence proves] the guilt of the accused [beyond a reasonable doubt].”**

Aldea Accused & Conan Complainant

264.1 (1) Every one commits an offence who, in any manner, knowingly utters, conveys or causes any person to receive a threat

(a) to cause death or bodily harm to any person [...]

Conan testifies that his next-door neighbour, Aldea, brandished a rake at him and threatened to hit him with it during an argument about noise levels.

Aldea testifies that they had a polite conversation in which she agreed to lower her music; she denies threatening him.

Aldea Accused & Conan Complainant

- 1. We accept Aldea's exculpatory evidence.**
- 2. We are not sure whether to accept Aldea's exculpatory evidence.**
- 3. We reject Aldea's exculpatory evidence.**

Aldea, Conan & the *W.(D.)* Framework

We accept Aldea's exculpatory evidence.	First, if you believe the [exculpatory] evidence of the accused, obviously you must acquit.
We are not sure whether to accept Aldea's exculpatory evidence.	Second, if you do not believe [all of] the testimony of the accused but you are left in reasonable doubt by [any part of the accused's testimony], you must acquit.
We reject Aldea's exculpatory evidence.	Third, even if you are not left in [reasonable] doubt by [any part of the accused's testimony], you must [consider all] of the evidence which you do accept, [and ask yourself whether that evidence proves] the guilt of the accused [beyond a reasonable doubt].

Pop Quiz!

Because it is her word against Conan's and there is no other significant evidence, Aldea feels she must testify in her own defence to avoid being convicted of uttering threats.

What type of burden does this place on Aldea?

Objectives for Week 2 (continued)

- 17. Differentiate among legal burdens, evidentiary burdens, and tactical burdens.**
- 18. Explain and apply the air of reality test.**

Aldea Accused & Conan Complainant

Should we consider “defence of person”?

Conan testifies that his next-door neighbour, Aldea, brandished a rake at him and threatened to hit him with it during an argument about noise levels.

Aldea testifies that they had a polite conversation in which she agreed to lower her music; she denies threatening him.

Aldea Accused & Conan Complainant

Okay, should we consider “defence of person” now?

Conan testifies that his next-door neighbour, Aldea, brandished a rake at him and threatened to hit him with it during an argument about noise levels.

Aldea admits to this action but claims Conan was striding towards her quickly with his fist balled up, and she thought he would strike her.

The Air of Reality Test (1 / 3)

“The test is whether there is evidence on the record upon which a properly instructed jury acting reasonably could acquit.”

(R. v. Cinous)

The Air of Reality Test (2/3)

- **Identify all the evidence on the issue in question that could assist the party with the evidentiary burden (usually, the defence).**
 - Consider all helpful evidence from *both* parties
 - Consider reasonable inferences that could be drawn from evidence
- **Assume [for now!] that all this evidence is true. Could a properly instructed jury find in the party's favour on this issue?**
 - Yes → there is an air of reality; the issue should be considered
 - No → there is no air of reality; the issue need not be considered

Evidentiary Burden

- Air of Reality -

CROWN

DEFENCE

{issue}

A
O
R

{issue}

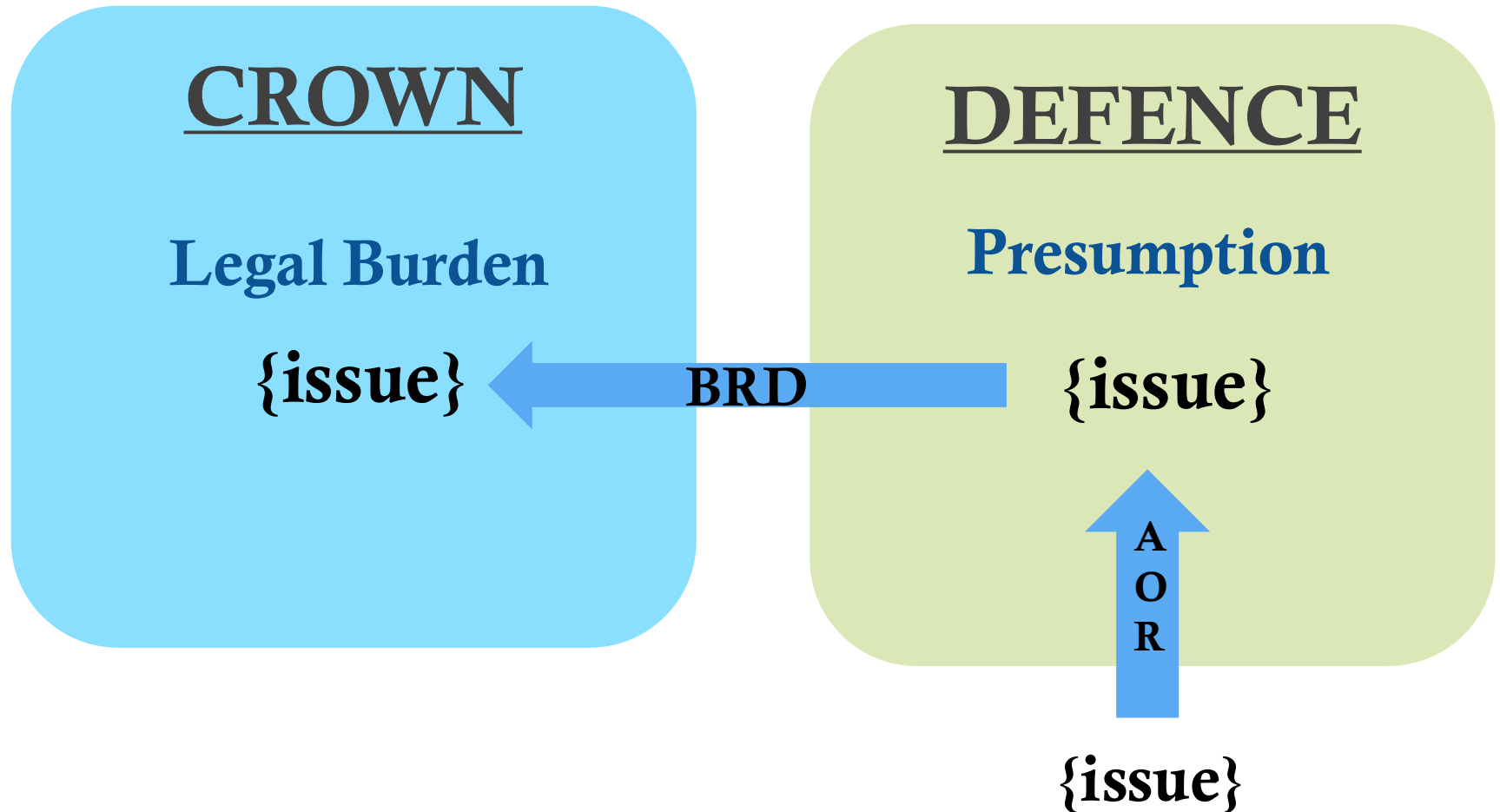
The Air of Reality Test (3/3)

“The test is whether there is evidence on the record upon which a properly instructed jury acting reasonably could acquit.”

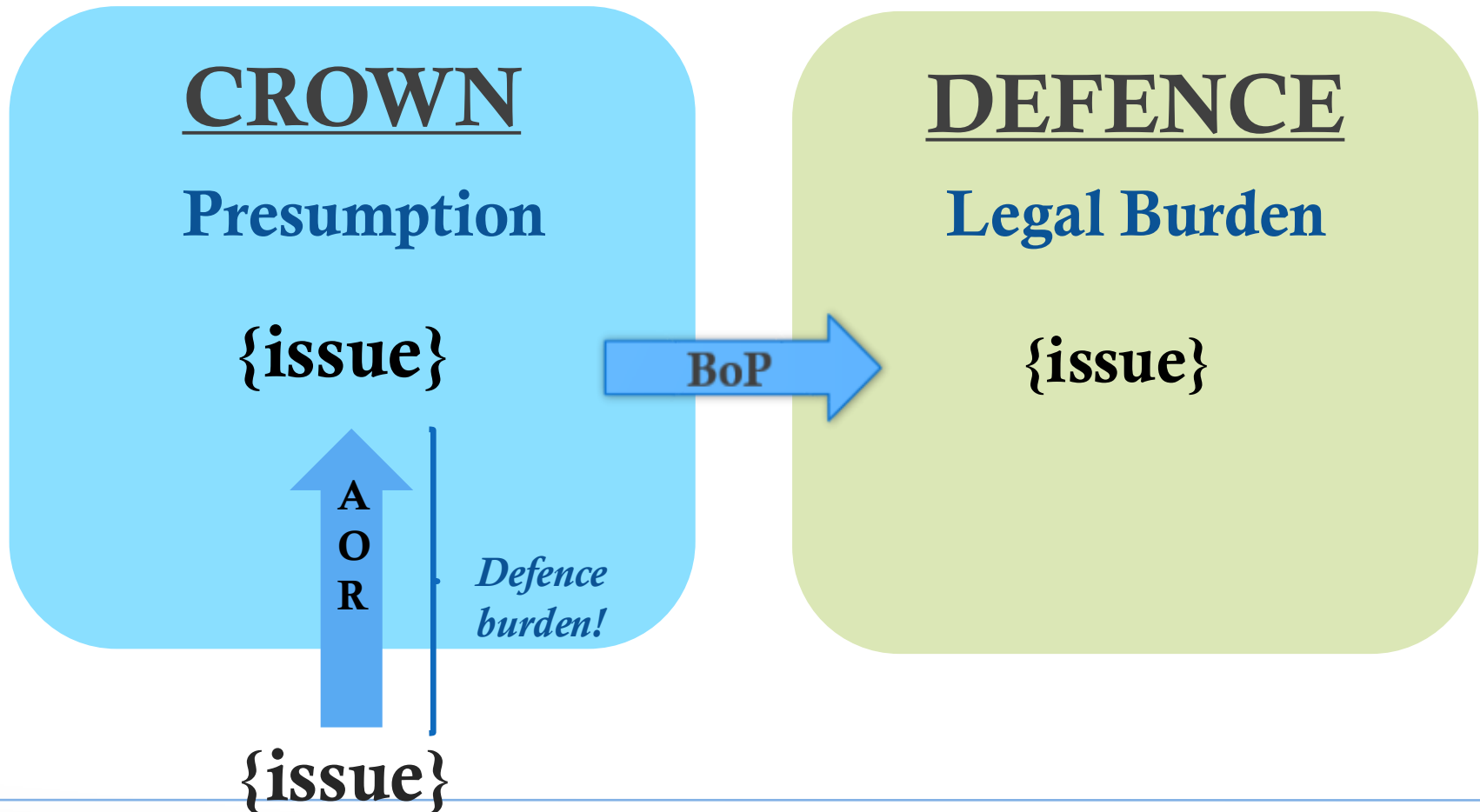
“It is trite law that the air of reality test imposes a burden on the accused that is merely evidential, rather than persuasive.”

(R. v. Cinous)

Evidentiary Burden + Legal Burden



Evidentiary Burden + Legal Burden (*where reverse onus*)

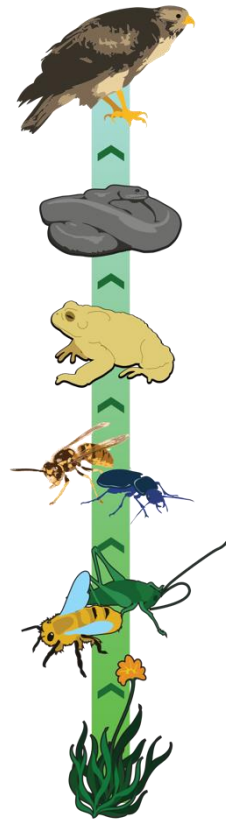


Objectives for Week 3

- 19. Explain the statuses of common law offences and defences, as well as the rationale for those statuses.**
- 20. Describe the role of common law precedent in the Criminal Law.**

Sources & Limits of Criminal Law

1. **CONSTITUTION** (including *Charter*)
 - Limits the creation of offences; mandates defences and procedural rules
2. **STATUTE** (*Criminal Code, Controlled Drugs and Substances Act, etc.*)
 - Creates offences, defences, and procedural rules.
3. **COMMON LAW** (precedent)
 - Interprets offences, defences, procedural rules; creates defences and procedural rules



Sources of Criminal Law: Common Law



**Sir Charles
Sedley
(1639-1701)**

Frey v. Fedoruk

**“The only charge laid against [Frey] was that he:
‘unlawfully did act in a manner likely to cause a breach of the peace by peeping at night through the window of the house of S. Fedoruk, there situated, against the peace of our Lord the King, his Crown and dignity; Contrary to the form of Statute in such case made and provided.’”**

(Frey v. Fedoruk, [1950] S.C.R. 517, 523)

Frey v. Fedoruk

“[N]o one shall be convicted of a crime unless the offence with which he is charged is recognized as such in the provisions of the *Criminal Code*, or can be established by the authority of some reported case as an offence known to the law. I think that if any course of conduct is now to be declared criminal, which has not up to the present time been so regarded, such declaration should be made by Parliament and not by the Courts.”

Criminal Code, s. 9

- 9. Notwithstanding anything in this Act or any other Act, no person shall be convicted [...]**
 - (a) of an offence at common law [...]**

Criminal Code, s. 8(3)

8. (3) Every rule and principle of the **common law** that renders any circumstance a justification or excuse for an act or a **defence to a charge continues in force and applies** in respect of proceedings for an offence under this Act or any other Act of Parliament except in so far as they are altered by or are inconsistent with this Act or any other Act of Parliament.

Doctrine of precedent

“[C]riminal offences in Canada since 1955 have been entirely statutory (with the exception of criminal contempt). However, the common law continues to play an important role in defining criminal conduct. Defining the elements of statutory offences often requires reference to common law concepts.

[...] Those concepts continue not only to illuminate the definition of statutory offences but also to give ‘content to the various principles of criminal responsibility those definitions draw from’. [...] Many of the ‘basic premises’ of the criminal law — the necessary conditions for criminal liability — are left to the common law”.

(R. v. D.L.W., 2016 SCC 22 at para. 15)

Objectives for Week 3 (continued)

21. Build your “statutory interpretation toolkit”:

- Apply the modern principle of statutory interpretation**
- Explain the principle of bilingual interpretation**
- Apply the rule of strict construction**

Statutory Interpretation Toolkit

- ✓ **The modern principle of statutory interpretation**
- ✓ **The principle of bilingual interpretation**
- ✓ **The rule of strict construction**



The Modern Principle of Statutory Interpretation

- **The words of an Act**
- **Their entire context**
- **Their grammatical and ordinary sense**
- **The scheme of the Act**
- **The object of the Act**
- **The intention of Parliament**
- **Where two readings equally plausible, adopt the one that accords with *Charter* values**

R. v. Clark

173. (1) Every one who willfully does an indecent act

(a) in a public place in the presence of one or more persons, or

(b) in any place, with intent thereby to insult or offend any person, is guilty of an offence punishable on summary conviction.

R. v. Clark

173. (1) Every one who willfully does an indecent act

(a) in a public place in the presence of one or more persons [...]

R. v. Clark

173. (1) Every one who willfully does an indecent act

(a) in a public place in the presence of one or more persons [...]

150. In this Part [...] “public place” includes any place to which the public have access as of right or by invitation, express or implied.

R. v. Clark

174. (1) Every one who, without lawful excuse,

(a) is nude in a public place, or

(b) is nude and exposed to public view while on private property, whether or not the property is his own,

is guilty of an offence punishable on summary conviction.

150. In this Part [...] “public place” includes any place to which the public have access as of right or by invitation, express or implied.

Statutory Interpretation Toolkit

- ✓ The modern principle of statutory interpretation
 - **The principle of bilingual interpretation***
 - The rule of strict construction

** You should understand this principle, but you are not required to apply it.*



Statutory Interpretation Toolkit

- ✓ The modern principle of statutory interpretation
- ✓ The principle of bilingual interpretation
- **The rule of strict construction**



R. v. Goulis

“... if a penal provision is reasonably capable of two interpretations that interpretation which is the more favourable to the accused must be adopted.”

R. v. Paré

“Criminal law remains [...] the most dramatic and important incursion that the state makes into individual liberty. [...] [T]he seriousness of imposing criminal penalties of any sort demands that reasonable doubts be resolved in favour of the accused.”

Bonus reflection question

How does the rule of strict construction reflect the same “rule of law” values as s. 9?

Objectives for Week 3

- 19. Explain the statuses of common law offences and defences, as well as the rationale for those statuses.**
- 20. Describe the role of common law precedent in the Criminal Law.**
- 21. Build your “statutory interpretation toolkit”:**
 - Apply the modern principle of statutory interpretation**
 - Explain the principle of bilingual interpretation**
 - Apply the rule of strict construction**